

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JORGE PEREZ,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER GISELLE
ZAYA – Badge No. 17305, POLICE OFFICER
“JOHN DOE 1”, POLICE OFFICER “JOHN
DOE 2” and POLICE OFFICER “JOHN
DOE 3”, first and last names “JOHN DOE”
being fictitious and unknown at the present
time,

Defendants.
-----X

Filed on

Index No.

Plaintiff designates Bronx
County as place of trial

SUMMONS

The basis of venue is the place
of the occurrence of the tort.

Plaintiff resides at:
938 East 15th Street
Brooklyn, NY 11230

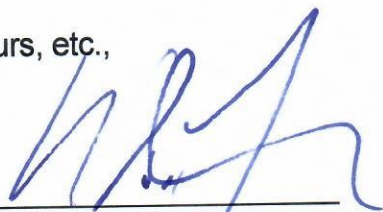
County of Kings

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
May 5, 2017

Yours, etc.,



NUSSIN S. FOGEL
Attorney for Plaintiff
299 Broadway - Suite 620
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK
1 Centre Street
New York, NY 10007

NEW YORK POLICE DEPARTMENT
One Police Plaza
New York, NY 10007

POLICE OFFICER GISELLE ZAYA – Badge No. 17305
c/o NEW YORK POLICE DEPARTMENT
Transit District 12
460 Morris Park Avenue
Bronx, NY 10460

POLICE OFFICER “JOHN DOE 1”
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

POLICE OFFICER “JOHN DOE 2”
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

POLICE OFFICER “JOHN DOE 3”
c/o NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JORGE PEREZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER GISELLE
ZAYA – Badge No. 17305, POLICE OFFICER
“JOHN DOE 1”, POLICE OFFICER “JOHN
DOE 2” and POLICE OFFICER “JOHN
DOE 3”, first and last names “JOHN DOE”
being fictitious and unknown at the present
time,

Defendants.
-----X

Plaintiff, JORGE PEREZ, for his Verified Complaint by his attorney, NUSSIN S.
FOGEL, respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a resident of the County of Kings, City and State of New York.
2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.
3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.
4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, was and still is an employee of defendant, CITY OF NEW YORK.
5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER

GISELLE ZAYA – Badge No. 17305, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, POLICE OFFICER “JOHN DOE 1”, first and last names “JOHN DOE” being fictitious and unknown at the present time, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, POLICE OFFICER “JOHN DOE 1”, first and last names “JOHN DOE” being fictitious and unknown at the present time, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

8. That, at all times hereinafter mentioned, defendant, POLICE OFFICER “JOHN DOE 2”, first and last names “JOHN DOE” being fictitious and unknown at the present time, was and still is an employee of defendant, CITY OF NEW YORK.

9. That, at all times hereinafter mentioned, defendant, POLICE OFFICER “JOHN DOE 2”, first and last names “JOHN DOE” being fictitious and unknown at the present time, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

10. That, at all times hereinafter mentioned, defendant, POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, was and still is an employee of defendant, CITY OF NEW YORK.

11. That, at all times hereinafter mentioned, defendant, POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

12. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 30th day of March, 2016, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2016PI012678; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one (1) year and ninety (90) days of the date of the occurrence and that defendants conducted a statutory hearing relating to the claims made therein on April 20, 2017.

13. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

14. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

15. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

16. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

17. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,

controlled the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

18. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

19. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

20. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York.

21. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

22. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

23. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

24. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

25. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

26. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

27. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

28. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York

29. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

30. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

31. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

32. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the New York County Central Booking Facility located at 100

Centre Street, County, City and State of New York.

33. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

34. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

35. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

36. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York.

37. That, on or about February 12, 2016, at approximately 12:30 a.m. plaintiff herein was lawfully passenger on the 6 train in, at or near at the 3rd Avenue-138 Street Station in the County of the Bronx, City and State of New York.

38. That, on or about February 12, 2016, at approximately 12:30 a.m., the plaintiff herein was unlawfully removed from said train at the 3rd Avenue-138th Street Station, by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time.

39. That, on or about February 12, 2016, at approximately 12:30 a.m. at the

aforesaid location plaintiff herein was unlawfully stopped, detained and thereafter arrested and imprisoned by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time.

40. That, on or on or about February 12, 2016, at approximately 12:30 a.m., plaintiff herein was unlawfully detained, arrested and imprisoned by defendants herein at the aforesaid location.

41. That on or on or about February 12, 2016, at approximately 12:30 a.m., plaintiff herein remained unlawfully detained, arrested and imprisoned thereat and was thereafter transported to the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York by defendants herein.

42. That, plaintiff herein remained unlawfully detained, arrested and imprisoned by defendants herein at the Transit District 12 of the New York Police Department located at 460 Morris Park Avenue, in the County of Bronx, City and State of New York until approximately February 12, 2016, at approximately 6:00 a.m. when plaintiff herein was transferred to the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York.

43. That, plaintiff herein remained unlawfully detained, arrested and imprisoned by defendants herein at the Vernon C. Bail Correctional Center Facility located at 1 Halleck Street, County of Bronx, City and State of New York until approximately February 16, 2016, at approximately 6:00 a.m. when plaintiff herein was transferred to the New York

County Central Booking Facility located at 100 Centre Street in the County, City and State of New York, whereat plaintiff herein remained unlawfully detained, arrest and imprisoned by defendants herein.

44. That, plaintiff herein remained unlawfully detained, arrested, imprisoned and prosecuted within the New York County Central Booking Facility located at 100 Centre Street, County, City and State of New York until approximately February 16, 2016 at 6:00 p.m. when plaintiff herein was released from custody.

AS AND FOR A FIRST CAUSE OF ACTION

45. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "44" as if the same had been fully set forth herein.

46. That, at the aforesaid times and places, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, unlawfully stopped and detained plaintiff herein.

47. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff herein to be unlawfully stopped and detained and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

48. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, without any negligence on the part of plaintiff herein contributing

thereto.

49. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, negligently disregarded their duty to protect plaintiff herein; negligently failed to prevent plaintiff herein from being unlawfully stopped and detained; negligently failed to prevent its agents, servants and/or employees from unlawfully stopping and detaining plaintiff herein; negligently took no action to stop the unlawful stopping and detaining of plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; negligently failed to provide adequate safety and security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff herein would not be subject to unlawful stopping and detaining without provocation or knowledge that plaintiff herein posed a danger or threat or plaintiff herein was guilty of any wrong doing; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

50. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants herein in their ownership, operation, maintenance, control and supervision of the aforesaid premises, facilities, agents, servants and employees thereat; and in their negligent performance and execution of its police, enforcement and investigational duties.

51. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

52. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "51" as if the same had been fully set forth herein.

53. That, at the aforesaid times and places, defendant officers, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, seriously and severely injured plaintiff herein.

54. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, carelessly, and negligently injured plaintiff herein and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

55. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, without any negligence on the part of plaintiff herein contributing thereto.

56. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown

at the present time, disregarded their duty to protect plaintiff herein; negligently stopped and detained plaintiff herein and by reason thereof inflicted serious injuries upon plaintiff herein; failed to prevent plaintiff herein from being subjected to the negligent stopping and detention; negligently took no action to stop the unlawful stopping and detaining of plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; and negligently, carelessly and recklessly performed and executed their police, enforcement and investigational duties.

57. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, in the performance and execution of their police, enforcement and investigational duties.

58. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

59. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “58” as if the same had been fully set forth herein.

60. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER

"JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, who caused plaintiff herein to incur serious and severe personal injuries.

61. That, defendants herein knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, that they were persons of incompetence and indifference; that they had previously unlawfully stopped and detained individuals and thereby inflicted serious injuries thereupon; had unlawfully stopped and detained individuals other individuals without just cause and provocation; and were known by general reputation to be incompetent and indifferent.

62. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employees the defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, when these defendant correction officers were employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

63. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE

DEPARTMENT, in the hiring, supervision, training and retention of defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time.

64. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

65. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “65” as if the same had been fully set forth herein.

66. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely detained or arrested plaintiff herein or caused plaintiff herein to be, become and remain falsely detained or arrested.

67. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, intentionally confined plaintiff; that, plaintiff herein was aware of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

68. By virtue of the aforesaid, plaintiff herein was caused to sustain serious

and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

69. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "68" as if the same had been fully set forth herein.

70. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely detained or imprisoned plaintiff herein or caused plaintiff herein to be, become and remain falsely detained or imprisoned.

71. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, intended to confine plaintiff herein; plaintiff herein was conscious of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

72. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

73. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs "1" through "71" as if the same had been fully set forth herein.

74. That, the plaintiff herein was maliciously prosecuted by defendants herein, who under the facts available did not have an objective, good faith belief that the plaintiff was involved in any criminal acts, guilty of any wrong-doing or posed a danger.

75. That, defendants herein caused criminal proceedings to be commenced against the infant plaintiff herein; that said criminal proceedings were thereafter terminated in favor of the infant plaintiff herein; that, the criminal proceedings lacked probable cause; and that, the criminal proceedings were brought out of actual malice.

76. By virtue of the aforesaid, the plaintiff herein was caused to sustain serious and severe personal injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

77. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "76" as if the same had been fully set forth herein.

78. That, at the aforementioned times and places, plaintiff herein was seized, detained, falsely arrested, imprisoned and maliciously prosecuted by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, without just cause or provocation.

79. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305,

POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

80. That, the seizing, detaining, false arrest, imprisonment and malicious prosecution by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

81. That, the acts of defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, were done under the color of law and under the color of authority to be executed justly by defendants herein.

82. That, the failure of defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JOHN DOE 2" and POLICE OFFICER "JOHN DOE 3", first and last names "JOHN DOE" being fictitious and unknown at the present time, in the exercise of their functions and their failure to enforce the laws of the United States and of the City and State of New York were carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

83. That, seizing, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, violated plaintiff’s rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

84. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

85. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “84” as if the same had been fully set forth herein.

86. That, at the aforementioned times and places, plaintiff herein was seized, detained, falsely arrested, imprisoned and maliciously prosecuted by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, without just cause

or provocation.

87. That, defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

88. That, the seizing, detaining, false arrest, imprisonment and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER GISELLE ZAYA – Badge No. 17305, POLICE OFFICER “JOHN DOE 1”, POLICE OFFICER “JOHN DOE 2” and POLICE OFFICER “JOHN DOE 3”, first and last names “JOHN DOE” being fictitious and unknown at the present time, violated plaintiff’s rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

89. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

90. That, the violation of plaintiff’s constitutional rights were caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

91. That, the custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidence of the reckless lack of cautious regard for the rights of citizens including plaintiff herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

92. That, the failure of defendants herein in the exercise of their functions and their failure to enforce the laws of the United States and the City and State of New York was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the City and State of New York which include plaintiff herein.

93. That, as a result of the aforesaid violations of plaintiff's constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of

money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Seventh Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for an Eighth Cause of Action, together with interest, costs and disbursements herein.

Dated: New York, NY
May 5, 2017

Yours, etc.,

NUSSIN S. FOGEL
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 620
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
May 5, 2017